

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Plaintiff,

-against-

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,

Defendants.

Index No.
600371/2021

AMENDED
AFFIRMATION IN
SUPPORT

JOHN N. CUOMO, an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following subject to the penalties of perjury.

1. I am the attorney for the Plaintiffs in this matter and as such, I am fully familiar with the facts and circumstances of the action at bar.
2. This amended affirmation is in support of the within application to compel Defendant Richard A. Calvagno II ("Calvagno") to respond to Plaintiffs' Combined Demands, or in the alternative to strike Defendant Calvagno's answer, defenses and counterclaims, and for such other and further relief as this Court may deem just and proper.
3. This action was commenced on January 8, 2021 with the filing of a Summons and Complaint. Issue was joined with the filing of answers by Calvagno (on January 26, 2021¹) and by Defendant Patrick J. Karcher on March 5, 2021. (Pleadings are annexed collectively hereto as **Exhibit A**)

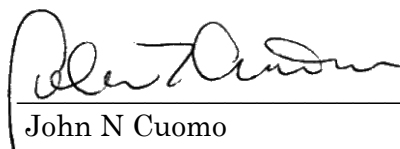
¹ Defendant Calvagno provided two answers, one dated and filed on January 26, 2021 and a second with counterclaims dated January 25, 2021 and filed on January 27, 2021. Plaintiffs treated the second (filed January 27) answer as an amended answer and filed its response to this pleading.

4. In or about April 2021, Plaintiffs served upon the Defendants “Combined Demands” which are annexed hereto as **Exhibit B**. Each Defendant responded to the demands. Calvagno’s response, dated May 18, 2021, is attached as **Exhibit C**. The response contains various information, including three photographs, but no video.
5. Shortly after responding, Calvagno’s counsel served what was identified as a “Cease and Desist” letter dated May 24, 2021. In that letter, opposing counsel wrote that the Plaintiff(s) had been verbally attacking Defendant Calvagno. He further stated Defendant Calvagno had been “recording events” as they occurred (*see*, attached **Exhibit D**). Defendant Calvagno had not provided any recordings in his May 18, 2021 discovery response.
6. The undersigned responded to opposing counsel on May 28, 2021 (*see*, attached **Exhibit E**) by noting that while opposing counsel had indicated that the purported events were recorded, no such recordings were ever produced by that Defendant. The undersigned went on to remind opposing counsel of its obligation to maintain and produce those images/recordings. To date, Defendant Calvagno has failed to provide any such material.
7. Defendant’s failure to produce this required material has caused delays and has limited the Plaintiffs in their ability to build their case and prepare their defenses to the counterclaims of Defendant Calvagno. C.P.L.R. § 3101 (a) provides that “[t]here shall be full disclosure of all matter material and necessary in the prosecution or defense of an action, regardless of the burden of proof”. CPLR 3101(i) provides that “[t]here shall be full disclosure of any films, photographs, video tapes or audio tapes” showing the activities of a party to litigation.

8. The material for which Defendant Calvagno has admitted to creating and storing, is on point to each of the issues in the matter at bar and will help Plaintiffs frame their case and defend against the allegation put forward by this Defendant.
9. The letter addressed to the opposing counsel from the undersigned, dated May 28, 2021, affording Defendant Calvagno six weeks to produce together represent a good faith effort to resolve this matter without the intervention of the Court.
10. There has been no prior application for the relief sought herein.

WHEREFORE Plaintiffs respectfully request that the relief sought herein be granted together with such other, further and different relief this Court deems to be just and proper.

Dated: Commack, New York
July 15, 2021



John N Cuomo
Attorney for Plaintiffs
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